

Calgary

Ruling finds professor's firing from Calgary university disproportionate to conduct

But Frances Widdowson's reinstatement not viable due to breakdown in relationship, arbitrator decides

[Joel Dryden](#) · CBC News · Posted: Oct 03, 2024 8:00 AM EDT | Last Updated: October 3, 2024



Listen to this article ⓘ

Estimated 5 minutes



At right, a file photo of Frances Widdowson. She was granted tenure at Mount Royal University in 2011, but the university terminated her employment on Dec. 20, 2021. That led to an arbitration hearing that involved 25 witnesses giving testimony spread over 10 months. (David Bell/CBC News, Google Meets)

Mount Royal University's decision to fire a controversial tenured professor in 2021 was disproportionate, even if her conduct did warrant discipline, an arbitrator has ruled.

The decision, which runs more than 300 pages, was delivered in July. It concerns 10 grievances filed by the professor, Frances Widdowson, and the Mount Royal Faculty Association, tied to Widdowson's dismissal on Dec. 20, 2021.

The hearing took 30 days spread over 10 months as 25 witnesses gave evidence. The hearing included thousands of pages of exhibits, focusing on complaints of harassment filed by Widdowson's colleagues. Widdowson also filed complaints that said she was harassed.

The hearing's main focus was not on comments from [Widdowson that made headlines in 2020](#), when she suggested there were educational benefits to Canada's residential school system and complained the Black Lives Matter movement had "destroyed" MRU — though she now says the statement about BLM was intended to be hyperbolic.

She was [back in the headlines last year](#) when a faculty member invited her to speak at the University of Lethbridge, spurring student protest.

'Twitter War'

Widdowson joined Mount Royal University in 2008 and was granted tenure in 2011. She taught courses in political science and policy studies, with a specialization in Indigenous peoples' policy and Indigenous affairs.

"She has controversial views on a number of topics. However, there has never been a complaint about the quality or ethics of her scholarship; she has never received performance management counselling for either her teaching or scholarship; and the university has supported and recognized her scholarly activities," reads the decision from arbitrator David Phillip Jones.

Over a period of months, Widdowson and a number of colleagues traded a series of complaints about harassment and bullying as they took part in a "Twitter War," Jones wrote.

A series of investigations followed. Some of Widdowson's tweets were found to have constituted harassment, while some of Widdowson's complaints against colleagues were also substantiated.

- [University of Lethbridge says speech from controversial professor moved off campus](#)
- [Alberta to require 'free speech reporting' after uproar over controversial academic visit](#)

In July 2021, Widdowson made a complaint against another colleague for his tweets. An investigation found in November 2021 that none of those tweets constituted harassment, and characterized Widdowson's complaint "as being malicious, frivolous, vexatious and made in bad faith." Widdowson's firing took place in December 2021.

As a part of the arbitration, the faculty association suggested the case was about breaching Widdowson's academic freedom, and submitted that there was no harassment.

They suggested that the investigations were procedurally unfair, and that there was no just cause for any discipline. Therefore, the association said Widdowson should be reinstated with full retroactive salary and benefits.

The university, on the other hand, submitted that the case was about harassment and had nothing to do with academic freedom. Widdowson's conduct was just cause for a two-week suspension and the termination of her employment, the university said.



Controversial academic Frances Widdowson, pictured in the centre of this photo wearing a shirt that reads 'Rational Space,' showed up at the University of Lethbridge on Feb. 1, 2023, despite the school cancelling her lecture after days of pushback from students and faculty. (Sarah Jones/Lethbridge News Now)

Dismissal not appropriate, arbitrator writes

As a part of the arbitration, eight grievances were related to the process used to investigate the complaints while two were related to the suspension and dismissal of Widdowson.

The eight procedural grievances were dismissed by Jones. On one of Widdowson's grievances, Jones ruled that a two-week suspension was disproportionate, and ruled that a letter of reprimand be substituted in place of the suspension.

When it came to Widdowson's firing, Jones wrote that there was just cause for discipline based on Widdowson's conduct, but that dismissal was not an appropriate penalty.

However, the decision states that Widdowson's continued employment with the university would not be viable for a number of reasons, including Widdowson's ongoing hostility toward the university and colleagues, witness testimony that stated her return to the university would be disruptive, and her "persistence" throughout the arbitration hearing that a number of tweets investigated did not constitute harassment.

Instead, the arbitrator suggested a monetary payment, rather than reinstatement with lesser penalties.

Financial details still to be determined

In an interview with CBC News on Friday, Widdowson said she's pleased with the arbitrator's ruling that she had been wrongfully terminated.

But she said she continues to be upset about how the arbitration approached the issue of harassment.

"People continue to think that I engaged in harassment, which I did not. I've done extensive analysis of the different findings which were put forward by the different investigators," she said.

"There were four different investigators hired by MRU, and these investigators all had

Popular Now in News

- 1 **1 year later, few answers: the 'profoundly rare' disappearance of Lilly and Jack Sullivan**
- 2 **Why a salary of \$115K isn't enough to purchase a house in some parts of Canada**

different, contradictory findings. What we need from the decision is for there to be a neutral person who makes findings of facts about this."

A statement provided by Mount Royal University says it understands "the ongoing impact this process has had on our faculty, students and staff."

"While the formal process continues, we will have no further comment," the statement reads.

After an extension, the response deadline tied to financial claims is set for Oct. 16.

The Mount Royal Faculty Association said it does not comment on active grievances and arbitration, adding there is the possibility of a judicial review.

The Canadian Association of University Teachers declined to comment, adding it is in the process of submitting claims of damages arising from the arbitrator's decision.

- 3

Pentagon procurement post reveals Canada quietly locked into HIMARS deal
- 4

Protesters clash with police in Australia after suspected killer of Indigenous girl arrested
- 5

New Banksy statue appears in London